

Pregnancy Discrimination and Pregnancy-Related Disability Discrimination

Pregnancy discrimination is against the law. The EEOC enforces three federal laws that protect job applicants and employees who are pregnant.

The first law is **Title VII of the Civil Rights Act of 1964**, as amended by the Pregnancy Discrimination Act, which is called “Title VII.” It prohibits sex discrimination, including pregnancy discrimination. “Pregnancy” discrimination under **Title VII** can be based on:

- [Current pregnancy](#);
- [Past pregnancy](#);
- [Potential pregnancy](#);
- [Medical condition related to pregnancy or childbirth](#) including [breastfeeding/lactation](#);
- [Having or choosing not to have an abortion](#);
- and [Birth control \(Contraception\)](#).

The second law is the **Pregnant Workers Fairness Act**, which is called the “PWFA.” The PWFA requires a covered employer to provide [a reasonable accommodation](#) to a worker’s known limitation related to pregnancy, childbirth, or related medical conditions, unless the accommodation will cause the employer an [undue hardship](#).

The third law is the **Americans with Disabilities Act**, which is called the “ADA.” The **ADA** prohibits discrimination against an applicant or employee based on a disability, including a disability related to a pregnancy such as diabetes that develops during pregnancy. While pregnancy itself is not a disability under the ADA, [some pregnant workers](#) may have one or more impairments related to their pregnancy that qualify as a “[disability](#)” under the ADA. An employer may have to provide that worker with a [reasonable accommodation](#) for the pregnancy-related disability.

The ADA also requires that employers keep all medical records and information, including those that are pregnancy-related, [confidential](#) and in separate medical files.

Pregnancy & Work Situations

Title VII and the ADA cover employment discrimination in all aspects of employment, including:

- Hiring or the job application and selection process;
- Pay, job assignments, or promotions;
- Training, employee benefits, or any other term or condition of employment; and
- Firing from a job, reduction of hours, layoff, or termination of employment.

Pregnancy & Workplace Accommodations

Under the PWFA, an employer must accommodate a worker’s known limitation related to pregnancy, childbirth, or related medical conditions, absent undue hardship. The PWFA also [prohibits](#) an employer from forcing a worker to take an accommodation, absent certain steps, and prohibits an employer from requiring a worker to take leave if there is another accommodation that does not cause an undue hardship that will allow

the worker to stay on the job.

Workers may also be entitled to accommodations under [Title VII or the ADA](#).

Pregnancy & Harassment

It is unlawful to [harass](#) a worker because of pregnancy, childbirth, or a medical condition related to pregnancy or childbirth or because of a pregnancy-related physical or mental disability.

Learn more about [harassment](#).

Workers with Caregiving Responsibilities

[Discrimination against working parents and others with caregiving responsibilities](#) outside of work violates [Title VII](#) if it is based on sex. Under the [ADA](#), employers cannot discriminate against employees because they associate with a person with a disability by caring for that person, for example.

Learn more about [caregiver discrimination](#).

Retaliation & Interference

Title VII, the PWFA, and the ADA protect workers against [retaliation](#). It is illegal for an employer to retaliate against workers for [participating in the equal employment opportunity process](#) or [opposing any practice made unlawful under anti-discrimination laws](#).

The PWFA and the ADA also makes it illegal to [interfere](#) with rights under the PWFA and the ADA.

Learn more about [retaliation](#) and [interference](#).

Pregnancy & Other Workplace Laws

Pregnant workers and new parents may have additional rights under the [Family and Medical Leave Act \(FMLA\)](#). Workers needing to express breast milk in the workplace may have additional rights under the [Fair Labor Standards Act \(FLSA\)](#). Both of these laws are enforced by the [U.S. Department of Labor's Wage and Hour Division](#).

[Some state laws](#) provide additional protections including accommodations for pregnant workers, unpaid and paid job-protected leave, protections from discrimination, and additional rights regarding lactation.

What to Do If You Think You Experienced Discrimination

If you are a job applicant or an employee who believes that an employer has discriminated against you because of your pregnancy or your pregnancy-related disability, you can [file](#) a charge of discrimination with the EEOC. Learn more about filing [a charge of discrimination](#).

If you are a Federal job applicant or employee in this situation, you can take action by [filing a complaint](#) with the relevant federal agency.